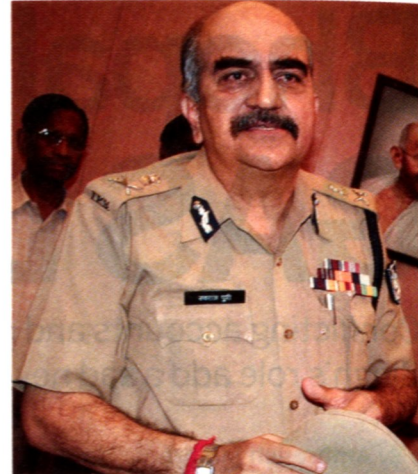


another application in the CJM's court for booking Arjun, Ajeya, the then chief secretary Brahmaswaroop and then SHO of Hanumanganj police station Surendra Singh for Anderson's release. This has raised a clamour for the ageing Arjun to come clean on his role and motivation. While everyone, from Congress leaders like Satyavrat Chaturvedi to Digvijay Singh, has jumped into the slugfest, it is the then prime minister, the late Rajiv Gandhi, who has also been dragged into the controversy. At a press conference in Bhopal after Anderson's release, Arjun had clearly stated he had kept the prime minister informed. In the years that followed this statement, neither did Arjun retract his statement, nor did Gandhi issue a rejoinder.

While almost everything that is now being dissected in the wake of the June 7 case is a matter of record, the Congress is clearly rattled by the fresh uproar. As Prime Minister Manmohan Singh asked the Group of Ministers headed by Home Minister P. Chidambaram to submit its report on different aspects of the tragedy within 10 days, the desperation to dissipate public anger is clear as the Congress's carefully cultivated pro-poor, *aam aadmi* image is under serious threat. The easiest way out for the GOI would be a new economic package after the first Bhopal action plan was wound up in 2000. But the judicial course of action could prove to be trickier. In the June 7 case, the court has already handed down the maximum possible punishment of two



THE THEN COLLECTOR MOTI SINGH (LEFT); AND SP SWARAJ PURI

WHY DID MOTI AND PURI FIRST ARREST AND THEN RELEASE ANDERSON WHEN THE CASE WAS UNDER THE CBI'S CHARGE?

years applicable for a crime under Section 304(A) of the IPC, so a review petition against the the lower court's order is impossible. Even as Law Minister M. Veerappa Moily has said the case was still open, a former judge of the Supreme Court, Justice Faizanuddin, has said that only a curative petition in the Supreme Court under Article 32 of the Constitution could lead to the reimposition of Section 304(II) for culpable homicide as the review option after the dilution of charges under the 1996 Supreme Court order is already exhausted.

Meanwhile, survivors' groups have objected to the presence of Chidambaram and Union Surface Transport Minister Kamal Nath in the GOM on the

grounds that both, as Union commerce ministers in the past, have been sympathetic to Dow Chemicals—the US company that acquired UCC back in 2001—proving that the issue of Dow acquiring legal liability for UCC in the Bhopal Gas Tragedy case is sensitive. In July 2004, a Bhopal activist filed a writ petition in the Jabalpur High Court seeking removal of toxic wastes and remediation of contaminated environment from the Bhopal site of the Carbide plant and apportioning the liability to Dow for the exercise. The High Court separated the matter of liability from the urgent matter of remediation. While the clean-up has been set rolling, albeit fitfully, no ruling has been made on the matter of liability till date.

While the Centre appears to be in a fire-fighting mode, cases like Dow's legal liability and the pending Supreme Court petition for more compensation (five times the original number of dead and maimed victims had been paid from the same settlement amount of \$470 million) offer it an opportunity to redeem itself. Congress governments, both at the Centre and the state, have been held largely responsible for a number of blunders that accentuated the survivors' sense of hurt and invited allegations of sell-out. It's about time the party finally acquitted itself of the toxic legacy that Bhopal has left behind. ■

MANMOHAN SINGH (LEFT) IS UNDER TREMENDOUS PRESSURE; THE THEN PM RAJIV GANDHI

WAS RAJIV GANDHI INVOLVED IN ANDERSON'S RELEASE, AS ARJUN SINGH HAD CLAIMED IN 1984?

